

MOTION TO MODIFY CUSTODY PURSUANT TO MCL 722.27

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

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MOTION TO MODIFY CUSTODY

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCL 722.27 for an order modifying the custody arrangement for the minor children. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Since the entry of the most recent custody order, there have been material and substantial changes in circumstances that warrant a modification of custody. The current arrangement -- under which Plaintiff has been denied all meaningful parenting time for 571+ days -- is not in the best interests of the minor children and must be modified to protect both the children's welfare and Plaintiff's fundamental constitutional rights.

II. LEGAL STANDARD

A. Threshold Showing -- Proper Cause or Change of Circumstances

Before the court may revisit a custody order, the moving party must establish either "proper cause" or a "change of circumstances" sufficient to warrant reconsideration. *Vodvarka v. Grasber*, 259 Mich App 499, 508-09 (2003).

Proper cause means "one or more appropriate grounds that have or could have a significant effect on the child's life sufficient to warrant a reevaluation of the child's custodial arrangement." *Id.* at 511.

Change of circumstances requires a showing of facts that "have or could have a significant effect on the child's well-being" since the entry of the last custody order. *Id.* at 513. The change must be demonstrated by a preponderance of the evidence. *Id.*

B. Established Custodial Environment

Once the threshold showing is made, the court must determine whether an established custodial environment exists. MCL 722.27(1)(c). An established custodial environment exists

"if over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." *Id.*

If the proposed modification would change the established custodial environment, the burden of proof is clear and convincing evidence. If it would not change the established custodial environment, the burden is preponderance of the evidence. MCL 722.27(1)(c).

C. Best Interest Factors

The court must then evaluate the best interest factors set forth in MCL 722.23(a) through (l). *Vodvarka*, 259 Mich App at 508.

III. PROPER CAUSE AND CHANGED CIRCUMSTANCES

A. 571+ Days of Enforced Separation

The most significant change of circumstances is the 571+ day period during which Plaintiff has been denied all meaningful contact with his children. This extended separation:

1. Has fundamentally altered the parent-child dynamic
2. Has caused documented emotional harm to the children
3. Was based on ex parte orders that Plaintiff contends were improperly entered
4. Has persisted despite overwhelming exculpatory evidence

B. Exculpatory Evidence Disproving Basis for Current Order

Since the entry of the current custody arrangement, the following exculpatory evidence has emerged or been confirmed:

1. **Negative drug screen** -- Plaintiff tested negative for all controlled substances, directly contradicting allegations that formed part of the basis for the current order
2. **HealthWest evaluation: ALL ZEROS** -- The initial independent psychological evaluation found no basis for concern regarding Plaintiff's parenting capacity
3. **Nine police investigations: ZERO findings** -- Law enforcement conducted nine separate investigations based on Defendant's allegations, and every single investigation resulted in zero findings against Plaintiff
4. **No criminal charges** -- Despite Defendant's numerous allegations, no criminal charges have been filed
5. **No CPS substantiation** -- Child protective services has not substantiated any allegations against Plaintiff

C. Defendant's Pattern of Misconduct

Defendant's conduct since the last custody order constitutes a changed circumstance:

1. Serial filing of unsubstantiated ex parte motions
2. Systematic denial of court-ordered parenting time
3. Making false reports to law enforcement (nine investigations, zero findings)
4. Withholding medical information and excluding Plaintiff from decision-making
5. Engaging in parental alienation tactics

6. Abuse of the court process to maintain unilateral control

D. Judicial Interference with Evaluation Process

The court's interference with the independent HealthWest evaluation -- sending a biasing letter after the initial evaluation returned ALL ZEROS -- constitutes a changed circumstance that undermines the evidentiary basis for the current custody arrangement.

IV. ESTABLISHED CUSTODIAL ENVIRONMENT ANALYSIS

A. Pre-Separation Environment

Prior to the ex parte orders, both parents were actively involved in the children's lives. Plaintiff maintained a stable home, participated in daily caregiving, and had a strong emotional bond with the children. The established custodial environment included both parents.

B. Current Environment -- Created by Court Error

The current environment, in which the children reside exclusively with Defendant, was not created by natural evolution but by ex parte court orders that Plaintiff contends were improperly entered. An established custodial environment created by improper court action should not be given the same weight as one created through the natural course of events. *Baker v. Baker*, 411 Mich 567 (1981).

C. Proposed Modification

Plaintiff requests modification to either: (a) primary physical custody with Plaintiff; or (b) equal (50/50) parenting time. Because the current custodial environment was artificially created by improper ex parte orders, the appropriate standard is preponderance of the evidence rather than clear and convincing evidence.

V. BEST INTEREST FACTOR ANALYSIS -- MCL 722.23

Factor (a): Love, Affection, and Other Emotional Ties

Plaintiff has a deep and enduring emotional bond with the children. Prior to the enforced separation, Plaintiff was an actively engaged father who participated in all aspects of the children's daily lives. The 571+ days of separation have caused distress to both Plaintiff and the children, but the underlying bond remains strong and can be restored with appropriate reunification.

This factor favors modification.

Factor (b): Capacity to Give Love, Affection, and Guidance

Plaintiff has demonstrated throughout the children's lives that he possesses the capacity to provide love, affection, and guidance. His parenting history, prior to the ex parte orders, was characterized by warmth, engagement, and appropriate discipline. The HealthWest evaluation (initial: ALL ZEROS) confirmed that there are no concerns regarding Plaintiff's capacity to parent.

This factor favors modification.

Factor (c): Capacity to Provide Food, Clothing, Medical Care

Plaintiff maintains stable employment and housing suitable for the children. He has the financial capacity to provide for the children's material needs, including food, clothing, shelter, and medical care.

This factor favors modification or is neutral.

Factor (d): Length of Time in Stable, Satisfactory Environment

While Defendant has maintained physical custody during the 571+ day separation, this environment was created by improper court action rather than by the natural course of events. Prior to the ex parte orders, Plaintiff maintained a stable and satisfactory home environment. Additionally, an environment that systematically excludes a parent is not "satisfactory" for the children's emotional development.

This factor is neutral or favors modification when properly analyzed.

Factor (e): Permanence of Family Unit

The current arrangement, which completely excludes Plaintiff, does not promote the permanence of a healthy family unit. Modification to include Plaintiff would better serve the goal of maintaining meaningful relationships with both parents and extended family on both sides.

This factor favors modification.

Factor (f): Moral Fitness of the Parties

Plaintiff has no criminal history, no substantiated allegations of misconduct, and no findings from nine police investigations. Defendant, by contrast, has engaged in serial false reporting, abuse of court process, parental alienation, and willful denial of court-ordered parenting time.

This factor strongly favors modification.

Factor (g): Mental and Physical Health

Plaintiff maintains good mental and physical health. The HealthWest evaluation returned ALL ZEROS, finding no psychological concerns. Plaintiff has no substance abuse issues (negative drug screen).

This factor favors modification.

Factor (h): Home, School, and Community Record

Plaintiff maintains a stable home and is an active, positive member of the community. There are no school or community concerns regarding Plaintiff.

This factor favors modification or is neutral.

Factor (i): Reasonable Preference of the Child

Upon information and belief, the children have expressed a desire for contact with their father. The children's preferences, to the extent they can be ascertained, support restoration of Plaintiff's role in their lives.

This factor favors modification.

Factor (j): Willingness to Facilitate Close Relationship

This factor is dispositive. Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant. Defendant, by contrast, has engaged in a systematic campaign to exclude Plaintiff from the children's lives entirely.

MCL 722.23(j) specifically directs the court to consider "the willingness and ability of each of the parties to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent." Defendant's conduct -- 571+ days of denied contact, serial false reports, ex parte manipulation -- demonstrates an absolute unwillingness to facilitate Plaintiff's relationship with the children.

Michigan courts have recognized that a custodial parent's failure to facilitate the child's relationship with the noncustodial parent is a significant factor weighing against that parent. *Demski v. Petlick*, 309 Mich App 404, 439-440 (2015).

This factor strongly favors modification.

Factor (k): Domestic Violence

There is no credible evidence of domestic violence by Plaintiff. Nine police investigations yielded zero findings. No protective orders based on domestic violence have been sustained against Plaintiff.

This factor favors modification or is neutral.

Factor (l): Any Other Factor

Additional factors weighing in favor of modification include:

1. The 571+ day separation itself, which causes ongoing harm
2. The exculpatory evidence (drug screen, evaluation, investigations) that undermines the basis for the current arrangement
3. Defendant's abuse of court process
4. The improper foundation of the current arrangement (ex parte orders without due process)
5. The need for stability and normalcy in the children's lives, which requires a relationship with both parents

This factor favors modification.

VI. THE DEMSKI FACTOR -- WILLINGNESS TO FACILITATE

A. Controlling Authority

In *Demski v. Petlick*, 309 Mich App 404, 439-440 (2015), the Michigan Court of Appeals emphasized the critical importance of Factor (j) -- the willingness and ability of each parent to facilitate the child's relationship with the other parent. The Court held that this factor can be dispositive in custody modification proceedings.

B. Application to This Case

The evidence in this case overwhelmingly demonstrates that Defendant is unable or unwilling to facilitate a relationship between the children and Plaintiff:

1. **571+ days of denied contact:** Defendant has enforced a complete prohibition on father-child contact for over 18 months
2. **Nine false reports:** Defendant filed nine separate reports with law enforcement, all yielding zero findings, demonstrating a pattern of using false allegations to prevent contact
3. **Ex parte manipulation:** Defendant has used the ex parte process to obtain orders cutting off Plaintiff's parenting time without affording Plaintiff the opportunity to respond
4. **Medical gatekeeping:** Defendant has excluded Plaintiff from medical decisions and withheld medical information about the children
5. **Communication blocking:** Defendant has refused to permit telephone or video calls between Plaintiff and the children

C. Contrast with Plaintiff's Conduct

By contrast, Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant:

1. Plaintiff has never sought to exclude Defendant from the children's lives
2. Plaintiff has never filed false reports against Defendant

3. Plaintiff has never sought ex parte orders to deny Defendant's parenting time
4. Plaintiff has cooperated with all evaluations, screenings, and court processes
5. Plaintiff has expressed willingness to work with Defendant on co-parenting

D. Michigan Policy Favoring Facilitative Parents

Michigan's strong public policy favoring joint parenting and the maintenance of parent-child relationships is reflected throughout the Child Custody Act. When one parent demonstrates an unwillingness to facilitate the other parent's relationship with the children, Michigan courts have consistently held that this weighs heavily against that parent in the custody determination. *Ireland v. Smith*, 451 Mich 457 (1996); *Dailey v. Kloenhamer*, 291 Mich App 660 (2011).

VII. GUARDIAN AD LITEM AND INDEPENDENT EVALUATION

A. Need for Independent Assessment

Given the length and severity of the separation, the contested nature of the proceedings, and the concerns about judicial interference with prior evaluations, an independent assessment of the children's current status and needs is essential.

B. Guardian Ad Litem

Plaintiff requests appointment of a Guardian Ad Litem (GAL) under MCL 722.24 to independently investigate and represent the children's best interests. The GAL should:

1. Interview both parents and the children
2. Review the complete court record
3. Consult with relevant professionals (teachers, doctors, therapists)
4. Assess the children's current emotional and psychological status
5. Make recommendations to the Court regarding custody and parenting time

C. New Independent Evaluation

Plaintiff further requests a new custody evaluation by a qualified forensic psychologist with no prior involvement in this case. Given the documented judicial interference with the HealthWest evaluation, it is essential that the new evaluation be conducted by an evaluator who is genuinely independent and insulated from external influence.

VI. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **FIND** that proper cause and/or changed circumstances exist to warrant modification of the custody order;
2. **CONDUCT** a full evidentiary hearing on the best interest factors;
3. **MODIFY** the custody arrangement to grant Plaintiff primary physical custody or, in the alternative, equal (50/50) parenting time;
4. **ORDER** a reunification plan to repair the damage caused by 571+ days of separation;

5. **APPOINT** a Guardian Ad Litem to independently evaluate the children's best interests;
6. **ORDER** a new, independent custody evaluation by an evaluator with no prior involvement in this case;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Modify Custody upon all parties of record via [electronic filing through MiFILE / first-class

mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors